

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.

10. S-CV-0053416 SCHAFFER, JACOB v. GREEN, RANDOLPH

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Defendants' Motion for Leave to File and Serve Cross-Complaint

Defendants seek leave of court to file a cross-complaint.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

The proposed cross-complaint alleges causes of action for (1) Quiet Title based on Adverse Possession; (2) Quiet Title based on the Agreed Boundary Doctrine; (3) Breach of Oral Contract; (4) Promissory Estoppel; (5) Trespass; (6) Private Nuisance; and (7) Declaratory Relief, all of which arise from the same transactions as plaintiffs' complaint. The court finds no evidence defendants acted in bad faith. The court further finds there is no risk of substantial prejudice to any party if leave is granted.

Accordingly, defendants' motion for leave to file a cross-complaint is granted. Defendants shall file and serve the cross-complaint on or before **May 7, 2026.**

If oral argument is requested with respect to continuing the trial and related dates, the parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select mutually agreed upon trial dates.

11. S-CV-0055110 TAYLOR, ALEXANDRIA v. K-LOVE

At the direction of the Presiding Judge, the demurrer and motion to stay are continued to be heard by the **Honorable Trisha J. Hirashima on June 30, 2026 at 8:30 a.m. in Department 42.**

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